

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

Date Purchased:

-----X
PAULINE NEWLAND,

SUMMONS

Plaintiff,

Plaintiff designates Queens County as the
place of trial.

-against-

The basis of venue is: Plaintiff's residence

THE CITY OF NEW YORK, P.O. JASON
BERNFELD and "JOHN DOE 1 – 6", the names being
fictitious and unknown police officers of the New York
Police Department,

Plaintiff resides at:

194-55 166 Ave
St. Albans, NY 11412

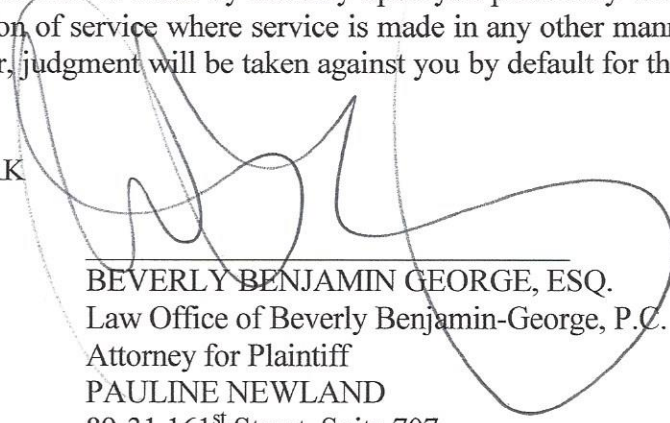
Defendants.
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County of Queens

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: JAMAICA, NEW YORK
August 19, 2015



BEVERLY BENJAMIN GEORGE, ESQ.
Law Office of Beverly Benjamin-George, P.C.
Attorney for Plaintiff
PAULINE NEWLAND
89-31 161st Street, Suite 707
Jamaica, New York 11432
(718) 395-3916

TO: Office of the Comptroller
The City of New York
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
PAULINE NEWLAND,

Plaintiff,

-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, P.O. JASON
BERNFELD and "JOHN DOE 1 - 6", the names being
fictitious and unknown police officers of the New
York Police Department,

Defendants.
-----X

Plaintiff PAULINE NEWLAND by her attorneys, LAW OFFICE OF BEVERLY
BENJAMIN-GEORGE, P.C., complaining of the Defendants herein, alleges
upon information and belief, as follows:

1. At all times herein mentioned, plaintiff PAULINE NEWLAND
was and still is a resident of the County of Queens, City and State of
New York.

2. At all times herein mentioned, defendant THE CITY OF NEW
YORK was a municipal corporation duly organized and existing under and
by virtue of the laws of the State of New York.

3. At all times herein mentioned, defendant THE CITY OF NEW
YORK was responsible for the practices, policies and customs of the
New York City Police Department.

4. At all times herein mentioned defendant THE CITY OF NEW
YORK was responsible for the hiring, screening, training, supervising,
controlling and disciplining of those persons employed by the New York
City Police Department.

5. At all times herein mentioned, the New York City Police Department was an agency of defendant THE CITY OF NEW YORK.

6. At all times herein mentioned, and particularly on or about May 26, 2014 defendant P.O. JASON BERNFELD was a police officer employed by the defendant THE CITY OF NEW YORK.

7. Defendants POLICE OFFICERS "JOHN DOE 1 - 6", are being sued herein both in their individual and official capacities, are and were at all times hereinafter mentioned, and particularly on or about May 26, 2014, employed by the defendant THE CITY OF NEW YORK.

8. Defendants were at all times acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New York and/or the City of New York and defendants were also acting within the scope of and in furtherance of their employment.

9. Prior to commencement of this action and within 90 days of occurrence herein, on or about July 30, 2015, plaintiff PAULINE NEWLAND served a Notice of Claim in writing, upon the defendant THE CITY OF NEW YORK, in accordance with Section 50-e of the General Municipal Law.

10. That on October 23, 2014, plaintiff PAULINE NEWLAND appeared for an examination under oath pursuant to Section 50-h of the General Municipal Law.

11. That on or about September 4, 2014, all criminal charges brought against Plaintiff PAULINE NEWLAND was dismissed.

12. On November 12, 2014, Plaintiff PAULINE NEWLAND further served a Supplemental Notice of Claim in writing upon the defendant THE CITY OF NEW YORK, in accordance with Section 50-e of the General Municipal Law, making a claim for malicious prosecution.

13. This action was commenced within one year and ninety days after the happening of the events upon which the claims herein are based.

14. That plaintiff has complied with all of the prerequisites for bringing this action.

15. At all times hereinafter mentioned and on May 26, 2014, plaintiff PAULINE NEWLAND resided at the premises located at 194-55 116 Avenue, Queens, New York, (hereinafter referred to as "the premises").

16. That on May 26, 2014, at approximately 10:30 pm - 12:00 midnight, plaintiff PAULINE NEWLAND was on her property located at 194-55 116 Avenue, Queens, New York.

17. At the above time and place, defendant P.O. JASON BERNFELD, and/or defendant JOHN DOE #1, a New York City police officer whose identity is currently unknown to the Plaintiff, appeared at the Plaintiff home in response to a call concerning a domestic dispute.

18. That Defendant P.O. JASON BERNFIELD and JOHN DOE #1 entered Plaintiff PAULINE NEWLAND premises and spoke with Plaintiff husband ERROL NEWLAND

19. That the aforementioned Defendants, upon realizing that the domestic dispute between the Plaintiff PAULINE NEWLAND and her husband

ERROL NEWLAND had resolved, discussed the matter by and amongst themselves.

20. Defendant P.O. JOHN DOE #2 then entered the premises and directed Defendant P.O. JASON BERNFELD AND P.O. JOHN DOE #1 to arrest the Plaintiff PAULINE NEWLAND.

21. That upon Defendants announcing the arrest to Plaintiff PAULINE NEWLAND, Plaintiff and her husband ERROL NEWLAND advised the officers that Plaintiff PAULINE NEWLAND was convalescing from 2 surgeries on her right arm, and that her right arm was mobilized and cannot be placed behind her back without causing further injury.

22. Defendant police officers then held the Plaintiff PAULINE NEWLAND, and violently forced her right arm behind her back, and she was handcuffed.

23. Both the Plaintiff and the Defendants heard a "cracking" noise to the Plaintiff right arm, but despite this, and the Plaintiff screams for pain, one of the Defendants yanked and pulled on the Plaintiff handcuffed arm.

24. At this time, defendant P.O. JASON BERNFELD, and/or defendant police officer JOHN DOE # 1 and JOHN DOE # 2 were joined by additional police officers whose identities are unknown and are hereafter referred to as JOHN DOE 3 through 6.

25. Plaintiff PAULINE NEWLAND was then forcibly dragged from her home, barefoot and in only a night shirt, by the defendant police officers.

26. The defendant officers forcibly manhandled plaintiff PAULINE NEWLAND into the rear seat of a police car.

27. Defendants then transported plaintiff PAULINE NEWLAND to the 113th Precinct in Queens, New York.

28. Plaintiff PAULINE NEWLAND was then dragged into the 113rd Precinct and locked in a jail cell.

29. Plaintiff PAULINE NEWLAND, had not physically resisted or assaulted the defendants in any way, and the force used against her was unnecessary, unreasonable and excessive.

30. Plaintiff PAULINE NEWLAND remained in the aforesaid jail cell at the 113th Precinct for approximately four to five hours.

31. Plaintiff PAULINE NEWLAND was refused medical attention while in police custody at the 113rd Precinct even though she was in pain and requested medical attention.

32. Thereafter, plaintiff PAULINE NEWLAND, was transported to Central Booking in Queens, New York.

33. Plaintiff PAULINE NEWLAND remained in that holding cell for approximately several hours.

34. Plaintiff was refused medical attention while in police custody at Central Booking in Queens, even though she requested medical attention.

35. Plaintiff was arraigned at and charged with a felony "Criminal possession of a weapon in the fourth degree," "menacing," and "harassment in the second degree."

36. Plaintiff pleaded "not guilty" to the aforesaid charges and was released on her own recognizance.

37. Plaintiff PAULINE NEWLAND was released from police custody.

38. On September 10, 2015, the aforementioned charges were dismissed upon the application of the Queens County District Attorney.

39. Plaintiff had to hire an attorney and make several court appearances in connection with the charges against her.

40. The defendant police officers had no warrant for the arrest of the plaintiff PAULINE NEWLAND, no probable cause for her arrest and no legal cause or excuse to seize the person of the plaintiff.

41. At all times during the events described above, the Defendant police officers were acting in concert.

42. At all times during the events described above, the individual defendant police officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAULINE NEWLAND
(BATTERY)

43. Plaintiff repeats and reiterates all of the above allegations as if fully set forth herein at length.

44. That defendant P.O. JASON BERNFELD, defendants and police officers JOHN DOE # 1 - 6 intentionally caused an offensive bodily contact with plaintiff PAULINE NEWLAND.

45. That plaintiff PAULINE NEWLAND did not consent to the aforesaid offensive bodily contact.

46. That Defendant P.O. JASON BERNFELD and police officers JOHN DOE # 1 - 6 engaged in the use of excessive force during the occurrences complained of herein.

47. That the force used by defendant P.O. JASON BERNFELD, and Defendants police officers JOHN DOE # 1 - 6 during the occurrences complained of herein went beyond the amount of force that is reasonably believed to be necessary to effect plaintiff arrest.

48. That defendant P.O. JASON BERNFELD, and defendants police officers JOHN DOES # 1 - 6 used excessive force to effectuate an arrest that was without probable cause or a warrant, and which was unlawful.

49. That the force used by defendant P.O. JASON BERNFELD, and defendants police officers JOHN DOES # 1 - 6 during the occurrences complained of herein was not justified or otherwise privileged.

50. That defendant P.O. JASON BERNFELD, and defendants police officers JOHN DOES # 1 - 6 did commit a battery upon plaintiff PAULINE NEWLAND.

51. That defendant P.O. JASON BERNFELD, and defendants police officers JOHN DOES # 1 - 6 were acting within in the course of their employment with the defendant THE CITY OF NEW YORK at the time of the aforementioned occurrences complained of herein..

52. That the defendant THE CITY OF NEW YORK, is liable to the plaintiff, PAULINE NEWLAND, under the doctrine of *respondeat superior*

for the acts and omissions of defendant P.O. JASON BERNFELD, and defendants police officers JOHN DOES # 1 - 6 and others in the New York City Police Department.

53. That by reason of the foregoing, plaintiff PAULINE NEWLAND was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

54. That by reason of the foregoing, the plaintiff, PAULINE NEWLAND, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAULINE NEWLAND
(FALSE ARREST AND IMPRISONMENT)

55. Plaintiff PAULINE NEWLAND repeats and reiterates all of the above allegations as if fully set forth herein at length.

56. That defendant P.O. JASON BERNFELD, and defendants police officers JOHN DOE # 1 - 6 and defendant THE CITY OF NEW YORK agents, servants and/or employees, wrongfully and unlawfully detained, confined, arrested, imprisoned and deprived plaintiff PAULINE NEWLAND of her liberties against her will and without her consent.

57. That defendants intended to detain, confine, arrest and imprison plaintiff PAULINE NEWLAND.

58. That plaintiff PAULINE NEWLAND was aware of the aforesaid detention, confinement, arrest and imprisonment.

59. That plaintiff PAULINE NEWLAND did not consent to the aforesaid detention, confinement, arrest and imprisonment.

60. That the aforesaid detention, confinement, arrest and imprisonment was not justified or privileged.

61. That the aforesaid detention, arrest and imprisonment was unlawful, and not based upon a warrant, reasonable or probable cause and/or any other justification.

62. That defendants falsely arrested and imprisoned plaintiff PAULINE NEWLAND.

63. That defendants, through their agents, servants and/or employees, acted with bad faith, and without probable cause and/or any reasonable suspicion, in committing and perpetrating the aforesaid detention, confinement, arrest and imprisonment upon the plaintiff, PAULINE NEWLAND.

64. That, at the time of the unlawful detention, confinement, arrest and imprisonment, the defendant police officers departed from accepted standards of police procedure and investigation techniques.

65. That, at the time of the unlawful detention, arrest and imprisonment, the defendant police officers acted without probable or reasonable cause.

66. That the aforesaid detention, confinement, arrest and imprisonment was committed with reckless disregard for the civil rights of plaintiff PAULINE NEWLAND.

67. That by reason of the foregoing, plaintiff PAULINE NEWLAND was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

68. That by reason of the foregoing, the plaintiff, PAULINE NEWLAND, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAULINE NEWLAND
(INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS)

69. Plaintiff PAULINE NEWLAND repeats and reiterates all of the above allegations as if fully set forth herein at length.

70. That the aforementioned actions of defendants were so extreme, outrageous, malicious and shocking that they exceeded all reasonable bounds of decency tolerated by the average member of the community.

71. That defendants acted with the desire and intent to cause the plaintiff, PAULINE NEWLAND undue emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

72. That as a result of the defendants' aforesaid conduct and intentional actions, the plaintiff PAULINE NEWLAND has suffered emotional distress.

73. That by reason of the foregoing, plaintiff PAULINE NEWLAND was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

74. That by reason of the foregoing, the plaintiff, PAULINE NEWLAND, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAULINE NEWLAND
(NEGLIGENT HIRING TRAINING, SUPERVISING, AND RETAINING)**

75. Plaintiff PAULINE NEWLAND repeats and reiterates all of the above allegations as if fully set forth herein at length.

76. That the actions of defendants, through their agents, servants and/or employees, constitute negligence in that the defendants negligently trained and/or failed to train their agents, servants, or employees.

77. That the actions of the defendants, through its agents, servants, or employees, constitute negligence in that the defendants negligently supervised and/or failed to supervise its agents, servants and/or employees.

78. That the actions of the defendants, through its agents, servants, or employees, constitute negligence in that the defendants

negligently disciplined and/or failed to discipline their agents, servants, or employees.

79. That the defendants were negligent in the hiring of their agents, servants and/or employees, who defendants knew, or in the course of an adequate and proper investigation should have reasonably known, were unfit to hold their positions.

80. That the defendants were negligent in their retention of its agents, servants and/or employees, who defendants knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority, and misused and abused their official powers.

81. That the defendants were negligent in their retention of its agents, servants and/or employees, who defendants knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority, and misused and abused their official powers.

82. The defendants, their agents, servants or employees acted negligently, carelessly and recklessly in hiring and/or retaining the individually named defendants in that said individual defendants were or should have been known to be employees who abused and misused their position, who gave false information, or who acted intentionally and/or recklessly toward the public.

83. That by reason of the foregoing, plaintiff PAULINE NEWLAND

was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

84. That by reason of the foregoing, the plaintiff, PAULINE NEWLAND, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAULINE NEWLAND
(MALICIOUS PROSECUTION)**

85. Plaintiff PAULINE NEWLAND repeats and reiterates all of the above allegations as if fully set forth herein at length.

86. That the defendants, individually and collectively, intentionally, knowingly, recklessly, negligently and maliciously caused the commencement of a criminal prosecution against plaintiff PAULINE NEWLAND in the Criminal Court of the City of New York, County of Queens, upon the filing of an accusatory instrument, without probable cause.

87. In commencing and continuing the malicious prosecution, the defendants caused plaintiff PAULINE NEWLAND to be falsely charged with acts in violation of the Penal Law of the State of New York.

88. That plaintiff PAULINE NEWLAND did not commit or attempt to commit any illegal acts.

89. That plaintiff PAULINE NEWLAND had not given defendants, their agents, servants and/or employees, probable cause to believe that she had engaged in the acts that she was falsely charged with committing.

90. That the defendants knew, or should have known, through the exercise of reasonable care and proper police procedure, that the investigation into the subject occurrence was flawed and incomplete.

91. That defendants, their agents, servants and/or employees, negligently and wrongfully continued and currently continue to prosecute plaintiff PAULINE NEWLAND for alleged violations of the Penal Law of the State of New York, even though the defendants knew or should have known of facts and circumstances that would have lead a reasonable person to conclude that the criminal complaint, upon which said the criminal prosecution was based, contained material falsehoods and was otherwise improper, and that continued prosecution of plaintiff PAULINE NEWLAND was and is inappropriate under the circumstances.

92. That all criminal charges brought by the People of the State of New York against the plaintiff PAULINE NEWLAND relating to the above-stated incident was dismissed.

93. That by reason of the foregoing, plaintiff PAULINE NEWLAND was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of

earnings and impairment of future earning capacity and other economic and pecuniary losses.

94. That by reason of the foregoing, the plaintiff, PAULINE NEWLAND, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAULINE NEWLAND
(VIOLATION OF CIVIL RIGHTS)

95. Plaintiff PAULINE NEWLAND repeats and reiterates all of the above allegations as if fully set forth herein at length.

96. That the actions of the defendants resulting from the unlawful arrest, detention, imprisonment, assault, use of excessive force, and the prosecution of the plaintiff PAULINE NEWLAND deprived her of rights, privileges, and immunities as granted under the United States Constitution, Amendments Four and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1983 and 1988, as the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to, the policies and customs concerning the hiring, training, supervision, retention and discipline of defendants' agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals.

97. That the defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use of excessive force and acts of misconduct against civilians, and subsequent attempts to conceal such actions by failing to adequately

train, supervise, and adequately discipline their agents, employees and offices.

98. That the defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and established a custom policy and/or practice of encouraging, approving and/or tolerating the use of improper procedures and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and officers.

99. That the defendants have deprived plaintiff PAULINE NEWLAND of her liberty in violation of her civil and constitutional rights, as set forth in the United States Constitution, 42 U.S. C. § 1983, and the Constitution of the State of New York.

100. That the defendants' actions were undertaken under color of law and would not have existed but for said defendants' use of their official power.

101. That the defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of her Constitutional and Civil rights.

102. That defendants' supervisors and policy-making officers, as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the above-detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

103. That defendants have failed to properly or effectively train their agents, servants and/or employees with regard to proper

constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

104. That defendants have sanctioned the above-mentioned policy and practices through their deliberate indifference to the effects of such policies and practices upon the constitutional rights of the Plaintiff and others similarly situated.

105. That the defendants' motivations were in clear contravention of the United States Constitution and the Constitution of the State of New York.

106. As a direct and proximate result of the aforesaid acts of the defendant police officers, the plaintiff PAULINE NEWLAND suffered a violation of her constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable search and seizure of her person and loss of her physical liberty.

107. The actions of the defendants violated the following clearly established and well settled federal constitutional rights of plaintiff PAULINE NEWLAND: Freedom from the unreasonable seizure of this person, and Freedom from the use of excessive, unreasonable and unjustified force against her person.

108. That by reason of the foregoing, plaintiff PAULINE NEWLAND was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of

earnings and impairment of future earning capacity and other economic and pecuniary losses.

109. That by reason of the foregoing, the plaintiff, PAULINE NEWLAND, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAULINE NEWLAND
(VIOLATION OF PLAINTIFF RIGHT AGAINST UNREASONABLE SEARCH AND SEIZURE
PURSUANT TO THE NEW YORK STATE CONSTITUTION)

110. Plaintiff repeats and reiterates all of the above allegations as if fully set forth herein at length.

111. That the defendants and each of them, in their individual and official capacities, had a duty under the New York State Constitution Article 1 Section 12 to prevent and cease the wrongful detainment, false arrest, false imprisonment, malicious and false charging and prosecution, and other wrongful acts that were committed against Plaintiff.

112. In actively inflicting and failing to prevent the above-stated abuses incurred by the Plaintiff, all of the defendants acted unreasonably, recklessly, and negligently in failing to exercise the slightest amount of due care to secure and protect the civil and constitutional rights of the Plaintiff against illegal search and seizure, physical abuse, detained custody and arrest without other due process that the New York State Constitution guarantees to the Plaintiff.

113. That the breach of duty under the New York State Constitution by the defendants was a direct and proximate cause of the aforementioned harm suffered by the Plaintiff.

114. That by reason of the foregoing, plaintiff PAULINE NEWLAND was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

115. That by reason of the foregoing, the plaintiff PAULINE NEWLAND has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAULINE NEWLAND
(TRESPASS)

116. Plaintiff repeats and reiterates all of the above allegations as if fully set forth herein at length.

117. That defendants without justification, privilege or permission, intentionally entered upon the property and into the residence of plaintiff PAULINE NEWLAND.

118. That defendants had no right or privilege to enter upon the property and into the residence of plaintiff PAULINE NEWLAND.

119. That at the time the aforesaid defendants entered upon the property and into the residence of plaintiff PAULINE NEWLAND, exigent circumstances did not exist.

120. That at the time the aforesaid defendants entered upon the property and into the residence of plaintiff PAULINE NEWLAND, exigent circumstances did not exist to permit a warrantless arrest of plaintiff.

121. That by reason of the foregoing, plaintiff PAULINE NEWLAND was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

122. That by reason of the foregoing, the plaintiff, PAULINE NEWLAND, has been damaged in a sum that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF PAULINE NEWLAND
(ATTORNEYS' FEES)**

123. Plaintiff PAULINE NEWLAND repeats and reiterates all of the above allegations as if fully set forth herein at length.

124. That the actions of defendants resulting from the arrest, detention, imprisonment assault, use of excessive force, and prosecution of Plaintiff, constitute an unlawful arrest imprisonment, battery, use of excessive force, trespass and malicious prosecution which deprived the Plaintiff of rights, privileges, and immunities, as guaranteed under the United States Constitution, Amendments Four and Fourteen, the New York State Constitution, the Civil Rights Acts, 42

U.S.C. §§ 1983 and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the defendants' agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals.

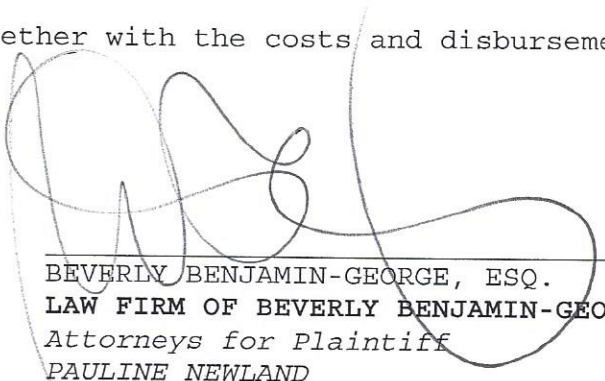
125. That the plaintiff has incurred significant attorneys' fees in the prosecution of the above-referenced claims against the defendants.

126. That in the event that the plaintiff is successful in the prosecution of this claim, then the plaintiff shall be a prevailing party within the meaning of 42 U.S.C. § 1988 and entitled to the recovery of said attorneys fees from the defendants.

127. As a result, defendants are liable to Plaintiff for a sum that will be determined at the time of trial.

WHEREFORE, Plaintiff PAULINE NEWLAND demands damages in an amount that exceeds the jurisdictional amount of all lower courts from all defendants in each of the above causes of action along with punitive damages and attorney fees, together with the costs and disbursements of this action.

DATED: JAMAICA, NEW YORK
August 19, 2015



BEVERLY BENJAMIN-GEORGE, ESQ.
LAW FIRM OF BEVERLY BENJAMIN-GEORGE, P.C.
Attorneys for Plaintiff
PAULINE NEWLAND
89-31 161 Street, Suite 707
Jamaica, NY 11432
(718) 395-3916

VERIFICATION

STATE OF NEW YORK)

: ss.

COUNTY OF QUEENS)

PAULINE NEWLAND, being duly sworn, deposes and says:

I am a named Plaintiff in the within action, and I am over the age of 18 years.

I have read the foregoing Complaint and know the contents thereof. The contents are true to my own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.



PAULINE NEWLAND

Sworn to before me this
19th day of August, 2015

Notary Public

Beverly Benjamin George
Notary Public, State of New York
No. 62BE6086807
Qualified in Nassau County
Commission Expires Feb. 3, 20 19

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

PAULINE NEWLAND,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JASON BERNFELD and "JOHN DOE 1 - 6",
THE NAMES BEING FICTITIOUS AND UNKNOWN POLICE OFFICERS OF THE
NEW YORK POLICE DEPARTMENT,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Beverly Benjamin-George, Esq.
Law Office of Beverly Benjamin-George, P.C.
Attorney for the Plaintiff
PAULINE NEWLAND
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